

23AHCV01535 23AHCV01535

County: los-angeles
Division: Civil Law and Motion
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Hearing date: 2026-09-16
Motion: PLAINTIFFS' MOTION FOR LEAVE TO FILE SECOND AMENDED COMPLAINT
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Case Number: 23AHCV01535 Hearing Date: September 16, 2026 Dept: 3

SUPERIOR COURT OF THE STATE OF
CALIFORNIA

FOR THE COUNTY OF LOS ANGELES - NORTHEAST
DISTRICT

LUXE PASADENA, LLC, et al.,

Plaintiff(s),

vs.

AMCAL
GENERAL CONTRACTORS, INC., et al.,

Defendant(s).

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CASE NO.: 23AHCV01535

[TENTATIVE]

ORDER RE: PLAINTIFFS' MOTION FOR LEAVE TO FILE SECOND AMENDED
COMPLAINT

Dept.

3

8:30

a.m.

September

16, 2026

I.

INTRODUCTION

Plaintiffs

Luxe Pasadena, LLC and Boston Dynasty Trust (collectively, "Plaintiffs") move
for leave to file a Second Amended Complaint ("SAC").

By

way of background, Plaintiffs' original Complaint was filed on July 5, 2023,
and named Amcal General Contractors ("Amcal") and Mutual Roofing Company, Inc.
as defendants. On October 17, 2024, Plaintiffs filed an amendment naming Titan
Sheet Metal, Inc. ("Titan"), Art Deck, Inc. ("Art Deck"), and Signature Glass
& Windows, Inc. ("Signature"), among others, as Doe defendants. Titan, Art

Deck, and Signature were previously substituted into Amcal's cross-complaint as Roes on October 23, 2023.

Plaintiffs

attempted to file a First Amended Complaint on May 19, 2025, but the filing was rejected on May 23, 2025, because Plaintiff failed to seek leave of court. A status conference was held on July 22, 2025, and Plaintiffs were given leave to file the FAC. Plaintiffs then submitted for filing a document titled "Amendment to Complaint (Fictitious/Incorrect Name)" on the docket. The filing was rejected because the document name and document type were incorrect. A second notice of rejection erroneously added that leave to amend was required. Plaintiffs did not attempt to re-submit the FAC, but it appears that the parties understood that the operative complaint was the FAC because the Court's minute order on July 22, 2025, stated that the answers initially filed by Amcal and Mutual Roofing Company, Inc. on October 5 and December 8, 2023, would be deemed answers to the anticipated FAC.

It

does not appear that Art Deck, Signature, and Titan have been personally served with either the Complaint or the FAC.

Plaintiffs

filed this motion on August 18, 2026.

Art

Deck and Signature filed an opposition brief on September 2, 2026. Titan filed a joinder to this opposition brief. Art Deck, Signature, and Titan argue that they should be dismissed from this action due to Plaintiffs' failure to personally serve them with any of the pleadings.

Amcal

filed a separate opposition brief on September 2, 2026.

Plaintiffs

filed a reply brief on September 10, 2026.

II.

DISCUSSION

The court may, in its discretion and

after notice to the adverse party, allow, upon any terms as may be just, an amendment to any pleading. (Code Civ. Proc., § 473, subd. (a)(1).) A motion to amend a pleading must include a copy of the proposed amendment or amended pleading which must be serially numbered to differentiate it from previous pleadings or amendments and must state what allegations in the previous pleading are proposed to be deleted or added, if any, and where, by page, paragraph, and line number, the allegations are located. (Cal. Rules of Court, Rule 3.1324(a).) The motion shall also be accompanied by a declaration attesting to the effect of the amendment, why the amendment is necessary and proper, when the facts giving rise to the amended allegations were discovered, and why the request for amendment was not made earlier. (Cal. Rules of Court, Rule 1.324(b).) “Although courts are bound to apply a policy of great liberality in permitting amendments to the complaint at any stage of the proceedings, up to and including trial . . . this policy should be applied only ‘where no prejudice is shown to the adverse party.’ [Citation]. A different result is indicated ‘where inexcusable delay and probable prejudice to the opposing party’ is shown. [Citation.]” (Magpali v. Farmers Group, Inc. (1996) 47 Cal.App.4th 471, 487.)

The proposed SAC adds causes of action for fraudulent concealment and nondisclosure in addition to unfair business practices. Plaintiffs state that the basis for these proposed amendments is their “discovery from consultation with ... consultants that the nature and extent of many Plaintiffs’ alleged defects could not exist in the subject Project absent Amcal’s knowledge and concealment of said conditions.” (Motion, p. 4; Jackson Decl., ¶¶ 8-10.)

The original complaint was filed over three years ago, and nowhere in Plaintiffs’ moving or reply papers do they specify how or when they discovered the facts underlying their proposed claims. Plaintiffs’ experts were retained in June 2023, even before the complaint was filed. In fact, it appears that Plaintiffs seek to broaden their remedies since mediation was unsuccessful. “There is a platoon of authority to the effect that a long unexcused delay is sufficient to uphold a trial judge’s decision to deny the opportunity to amend pleadings, particularly where the new amendment would interject a new issue which requires further discovery.” (Green v. Rancho Santa Margarita Mortgage Co. (1994) 28 Cal.App.4th 696, 692 [citing Rainer v. Community Memorial Hosp. (1971) 18 Cal.App.3d 240, 258].) Here, there is no excuse for Plaintiffs’ delay and adding a claim for fraud, which has different elements than the currently-pleaded claims for strict products liability and negligence, would undoubtedly require further discovery.

Therefore, the motion for leave to file the proposed SAC is DENIED.

The Court does not consider the arguments made by Art Deck, Signature, and Titan regarding mandatory dismissal due to the delay in service; a noticed motion requesting dismissal pursuant to Code of Civil Procedure section 583.250 may be made if the parties desire.

III.

CONCLUSION

Plaintiffs' motion for leave to file the proposed SAC is DENIED.

Plaintiffs to give notice.

Dated
this 16th
day of September
2026

William A. Crowfoot

Judge of the Superior Court

Parties who intend to submit on this tentative must send an email to the Court at ALHDEPT3@lacourt.org indicating intention to submit on the tentative as directed by the instructions provided on the court website at www.lacourt.org. Please be advised that if you submit on the tentative and elect not to appear at the hearing, the opposing party may nevertheless appear at the hearing and argue the matter. Unless you receive a submission from all other parties in the matter, you should assume that others might appear at the hearing to argue. If the Court does not receive emails from the parties indicating submission on this tentative ruling and there are no appearances at the hearing, the Court may, at its discretion, adopt the tentative as the final order or place the motion off calendar.